

STATE OF NEW YORK

8734--A

2025-2026 Regular Sessions

IN ASSEMBLY

June 2, 2025

Introduced by M. of A. STECK -- read once and referred to the Committee on Alcoholism and Drug Abuse -- recommitted to the Committee on Alcoholism and Drug Abuse in accordance with Assembly Rule 3, sec. 2 -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee

AN ACT to amend the mental hygiene law, in relation to establishing the individual counseling for integrated care rate enhancement act

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

Section 1. This act shall be known and may be cited as the "individual counseling rate enhancement act".

§ 2. The mental hygiene law is amended by adding a new section 19.18-d to read as follows:

§ 19.18-d Individual counseling rate enhancement.

1. The office shall establish a rate enhancement for reimbursement of individual psychotherapy services provided to individuals by a mental health counselor licensed pursuant to article one hundred sixty-three of the education law or a clinical social worker licensed pursuant to article one hundred fifty-four of the education law or a psychologist licensed pursuant to article one hundred fifty-three of the education law where such services are provided in outpatient substance use disorder clinics licensed pursuant to article thirty-two of this chapter. Such rate shall be no less than the rate established by the office for individual counseling in effect on the first of April next succeeding the date on which this section takes effect plus a service rate of 50%.

2. The office shall promulgate regulations to implement the rate enhancement set forth under this section. In developing such rates the office, in consultation with the department of health, shall, if necessary, pursue federal Medicaid participation and reimbursement. Within thirty-six months of the establishment of the enhanced rate, the office shall evaluate and report whether the access to integrated mental health

EXPLANATION--Matter in italics (underscored) is new; matter in brackets [-] is old law to be omitted.

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1 and addiction recovery services increased. The office shall transmit
2 such report to the governor, the temporary president of the senate, the
3 speaker of the assembly, the minority leader of the senate and the
4 minority leader of the assembly.
5 § 3. This act shall take effect immediately.